

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 9/23/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01581477 Gross vs. Gross	On the Court's own motion, this matter is being continued to 9/30/2026 at 8:30 AM in Department C61. The Court will not accept any further filings regarding the Anti-Slap Motion by either party. The Court is to provide notice of the new court date.
2	30-2026-01544463 John Gylstrand, successor Trustee of the Gylstrand Family Trust U.D.T. dated 7- 7-89 vs. Lehman	The Court has read and considered the Defendant's Motion to Withhold Entry, Reconsider and Correct the Minute-Order Ruling and Set Aside Proposed Judgment Before Entry (ROA 139), Memorandum of Points and Authorities (ROA 131), Declaration in Support (ROA 133), Proof of Service (ROA 135), and Plaintiff's Opposition. The Court takes Judicial Notice of the 5/27/2026 Minute Order (ROA 112), the Stipulation for Entry of Judgment (ROA 113), the Court's Electronic Recording of the 5/27/2026 Hearing, the Complaint (ROA 2), Proof of Service of Summons (ROA 8), Proof of Service of Summons & Complaint-Unnamed Occupants (ROA 10), and the 9/2/2026 Minute Order (ROA 129). California Code of Civil Procedure §1008(a) states, "When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by

		the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” The September 2, 2026, hearing was essentially a hearing in which the Plaintiff asked the Court to enforce the terms of the Stipulation for Entry of Judgment the parties entered into on 5/27/2026. On September 2, 2026, Mr. Lehman was present, presented evidence and argument to the Court, and after the ruling indicated to the Court that he would seek an appeal because he disagreed with the Court’s ruling. Plaintiff argues that the Defendant’s motion is untimely because it was filed on 9/15/2026, which is more than 10 days after the September 2, 2026 hearing date. First, the Defendant did not file his documents with the Court until September 16, 2026, which is 14 calendar days after the hearing date, but CCP §1008 specifically states “within 10 days after service upon the party of written notice of entry of the order” and although Mr. Lehman received oral notice of the Court’s ruling the day of the hearing, there is no documentation provided to this Court that Mr. Lehman received written notice of the Court’s ruling. Therefore, the Motion is not untimely. Defendant fails to establish new or different facts, circumstances, or law which would support reconsideration of this matter. The only exhibit which was not previously presented in the Defendant’s case was Exhibit I, “City of Los Angeles Renter Protections Notice” which is not applicable to a property in Orange County, California, and the applicability in general is in question, as the property in the Complaint is listed as a commercial property. As noted by the Court, Unit C’s lease agreement stated it was to be used only as office space, and using it as a living space violated the City of Huntington Beach Code. Therefore, the Court DENIES the Defendant’s Motion for failing to establish “new or different facts, circumstances, or law” pursuant to California Code of Civil Procedure §1008. Plaintiff is ordered to provide notice of the Court’s ruling.
3	30-2026-01580667 Sarai vs. Sadeghi	The Court has read and considered the Plaintiff’s Motion for Reconsideration to Set Aside Dismiss With Prejudice (ROA 58), Proof of Service (ROA 64) and Defendant’s Opposition (ROA 62). The Court takes Judicial Notice of the 8/17/2026 Minute Order (ROA 54). Plaintiff seeks a Motion for Reconsideration but fails to establish any legal authority for such motion and fails to comply with the filing requirements under the California Code of Civil Procedure and the California Rules of Court. Additionally, the Plaintiff fails to state what new or different facts, circumstances, or law support the motion for reconsideration. On 8/17/2026,

		the Court heard the Plaintiff's argument about his unlimited civil action; the motion provided no new information. As such, the Court DENIES the Motion for Reconsideration with prejudice. The Defendant is to provide notice of the Court's ruling.
4	30-2026-01542409-CL-UD-CJC Gelt Oasis Exchange, LLC vs. Monroe	The Court has reviewed the Defendant's Motion to Vacate Default Judgment (ROA 32) and Proof of Service (ROA 35). The Court takes Judicial Notice of the Return on Writ of Possession (ROA 15), Judgment-Unlawful Detainer (ROA 13), Request for Entry of Default (ROA 14) and Proof of Service of Summons (ROA 8). Court also takes Judicial Notice of Related Case 30-2026-01553185-CL-UD-CJC. Defendant declares that no lockout occurred, that Defendant paid the money owed, and that Defendant remains at the subject premises. The Plaintiff has filed no contradictory statement with the Court. At the related case hearing on 9/16/2026, the Plaintiff made an oral motion to dismiss the case with prejudice. Plaintiff filed this unlawful detainer within a month of the other unlawful detainer. The Court GRANTS the Motion to Set Aside Default and Default Judgment. The Court QUASHES the Writ of Possession. The Court Clerk is to notify the Orange County Sheriff's Department that the Writ of Possession is QUASHED. The Case is dismissed without prejudice. The Motion to Seal the record is moot, given the case dismissal, and the motion is off calendar. The Court Clerk is ordered to provide notice of the Court's Ruling.
5	30-2023-01367887 Flight Phase I Owner, LLC vs. Incipio, LLC	The Court has read and considered the Motion to Be Relieved as Counsel of Record (ROA 293), Declaration in Support of Motion to be Relieved as Counsel (ROA 286), and Notice of Non-Opposition (ROA 300). The Court GRANTS Sklar Kirsh, LLP motion to be relieved as counsel for Onward Brands, LLC. <i>Merco Construction Engineers, Inc. v. Municipal Court</i> (1978) 21 Cal.3d 724 held that a corporation is an artificial person and cannot appear in court in propria persona or through a non-attorney agent. Because Onward Brands, LLC is a limited liability company and may not appear in court in propria persona, Onward Brands, LLC is ordered to obtain legal counsel to represent its interests in these proceedings no later than October 7, 2026. The Court Clerk is to serve the Defendant, Onward Brands, LLC at the following addresses with the Court's ruling: (1) Onward Brands, LLC c/o Charles Tebele, 767 Fifth Ave., 37th Floor, New York, NY 10153 and

		(2) Onward Brands, LLC, Registered Agent for Service, Corporate Service Bureau Inc., 614 N. Dupont Hwy., Suite 210, Dover, DE 19901
6	30-2026-01594403 Ramanathan vs. Gordy	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 11). The Court takes Judicial Notice of the Court Docket and Order to Serve Summons by Posting (ROA 21). Defendants indicate they received a copy of the summons and complaint on 9/3/2026 at their doorstep. No proof of service of summons has been filed with this Court. On 9/17/2026, this Court signed an Order to Serve Summons by Posting after a declaration of attempted service on the Defendant by registered process server David Cunningham (Orange County #1895). The Court GRANTS the Defendants' Motion to Quash Service of Summons. The Court Clerk is to send notice of the Court's ruling.
7	30-2026-01592557 Kwok vs. Zabek	The Court has read and considered the Defendant's Demurrer to Complaint (ROA 13) and the Complaint (ROA 2). The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
8	30-2026-01588949 22751 EL Prado LLC vs. Triplett	The Court has read and considered the Defendants' Demurrer to the Complaint (ROA 31) and Request for Judicial Notice (ROA 27). The Court takes Judicial Notice that on 9/18/2026 the Plaintiff filed an Amended Complaint (ROA 36). California Code of Civil Procedure §472(a) states: "A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is <i>filed and served</i> no later than the date for filing an opposition to the demurrer or motion to strike." (emphasis added) Although the Amended Complaint has been filed with the Court, there is no evidence filed with this court that the Amended Complaint has been served on the Defendants. Because the Amended Complaint was not served in compliance with California Code of Civil Procedure §472(a), the Court finds that the Amended Complaint was untimely, and the Demurrer to the Complaint is not moot. The Court grants the Defendant's Request for Judicial Notice of the Statement of Decision filed 6/15/2026 in 30-2026-01558498-CL-UD-CJC

and UD-110 from 30-2026-01558498-CL-UD-CJC filed 7/27/2026. The Court also takes Judicial Notice of the Complaint (ROA 2).

Defendants argue collateral estoppel and res judicata, as the Plaintiff previously sued the Defendants for an unlawful detainer in 30-2026-01558498-CL-UD-CJC in Department C66 for nonpayment of rent regarding a notice to pay rent or quit for the time period of 10/2025-2/2026, and the Court in that case found judgment for the Defendants due to an overstatement of rent. The 30 day Notice to Pay Rent or Quit attached to the Complaint seeks rent from November 2025 to June 2026.

“Claim preclusion prevents relitigation of entire causes of action. (*Mycogen, supra* 28 Cal.4th at p. 896; see also *id.*, at p. 904 [discussing “primary right theory,” which defines the scope of a cause of action].) Claim preclusion applies only when “a second suit involves (1) the same cause of action (2) between the same parties [or their privies] (3) after a final judgment on the merits in the first suit.” [citation] Issue preclusion, by contrast, prevents “relitigation of previously decided issues,” rather than causes of action as a whole. (*Ibid.*) It applies only “(1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party.” [citation]” (*Samara v. Matar* (2018) 5 Cal. 5th 322, 326-327.)

“An unlawful detainer judgment is given res judicata effect only as to issues which were actually, fully, and fairly litigated in that proceeding. (*Vella v. Hudgins, supra*, 20 Cal.3d at pp. 255-57; *Pelletier v. Alameda Yacht Harbor* (1986) 188 Cal.App.3d 1551, 1557, 230 Cal. Rptr. 253.) Here, the prior unlawful detainer action resolved by judgment the principal issue of Archstone's entitlement to immediate possession based upon the allegation that Phillips forfeited the lease by non-payment of rent as of the date that action was filed — April 19, 2013, The present action alleged breaches of the obligation to pay rent occurring from April, 2013, through and including October, 2013. Thus, the pending action asserts an immediate right to possession for breaches of the lease which were not the subject of the prior unlawful detainer action. That issue was not necessarily litigated in the prior unlawful detainer action. Accordingly, res judicata does not bar the pending action.” (*Archstone Simi Valley, LLC v. Phillips* (2015) 2015 Cal.Super.LEXIS 14772, *9.)

“Rental damages in an unlawful detainer action are limited to those accruing during the tenant's wrongful detention of the premises; they may not include future rental damages. (*Ibid.*) Landlords are forbidden to bring separate unlawful detainer actions each time the tenant fails to pay installment rent when due by virtue of the doctrine against splitting causes of action. (*Lekse v. Municipal Court* (1982) 138 Cal.App.3d 188, 193, 187 Cal. Rptr. 698.) They are likewise prohibited by principles of res judicata from obtaining rent damages in a subsequent unlawful detainer proceeding which accrued in a prior unsuccessful unlawful detainer proceeding. (*Hudec v. Robertson, supra*, 210 Cal.App.3d at pp. 1162-63.2 Therefore, to the extent that the pending unlawful detainer proceeding seeks rental damages overlapping with those sought in the prior unlawful detainer proceeding — it appears that involves rent due for the month of April, 2013 — such damages are barred by the

		doctrine of res judicata and the prohibition against splitting causes of action.” (<i>Archstone Simi Valley, LLC v. Phillips</i> (2015) 2015 Cal.Super.LEXIS 14772, *10-11.) Plaintiff is seeking rent for November 2025, December 2025, January 2026, and February 2026, which were also sought in 30-2026-01558498-CL-UD-CJC, and Judge Carillo-Orellana ultimately found for the Defendant in that action regarding those same months. While the damages sought in this pending action are to a limited extent barred by res judicata, the pending action is otherwise not barred by the prior unlawful detainer judgment in Defendants’ favor. Therefore, the Court OVERRULES the Demurrer. Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court’s ruling.
18	30-2026-01594893 UDR Eight80 I LP vs. Reynoso	The Court has read and considered the Defendants Motion to Quash Service (ROA 15) and Proof of Service by Mail (ROA 22). The Court takes Judicial Notice of the Proofs of Service-Personal (ROA 9 & 11) and Proof of Service – Unnamed Occupants (ROA 13). California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Registered process server Frank Harrigan (Orange County #1530) personally served Juan Reynoso, with description, on 9/8/2026 at 6:14 PM, and Brenda Catalan, with description, on 9/4/2026 at 10:42 AM. Defendants provide no evidence to support their claim that service was not proper; therefore, they fail to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Quash Service of Summons. Defendants are ordered to file a responsive pleading within 5 calendar days. The Plaintiff is ordered to provide notice of the Court’s ruling.